

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE

NAGPUR, MAHARASHTRA

Petition No. 1234 OF 2025

In the matter of:

Ms. Ruchika Jagdish Vaidya

Petitioner

(Full Name, Address, and Contact Information)

Vs.

Mr. Harsh Jain

Respondent

(Full Name, Address, and Contact Information)

PETITION FOR INVESTIGATION, ARREST, AND CHARGES AGAINST THE RESPONDENT FOR ROBBERY UNDER SECTIONS OF BNS

1. Introduction

The petitioner, Ms. Ruchika Jagdish Vaidya, is a resident of 0012, Chattrapati Square, Nagpur, Maharashtra. She is filing this petition before the Hon'ble Court to take appropriate legal action against Mr. Harsh Jain, who unlawfully entered her residence and committed the crime of robbery by stealing gold and breaking the cupboard lock.

2. Date, Time, and Nature of the Incident

On 8th September 2025, at approximately 10:30 AM, Mr. Harsh Jain unlawfully entered the house of the petitioner, Ms. Ruchika Vaidya, and committed the following illegal acts:

- Broke the cupboard lock inside the house.
- Stole gold items and other valuables from the cupboard.

3. Details of the Incident

On the specified date and time, the accused, Mr. Harsh Jain, took advantage of the absence of the petitioner from her home and broke into the premises. He managed to forcefully break the cupboard lock and took away gold and other valuable items, resulting in significant financial loss and emotional distress for the petitioner.

4. Evidence of the Offense

- The petitioner has CCTV footage that clearly shows Mr. Harsh Jain entering the premises and engaging in the act of robbery.
- The presence of the petitioner's house security system (CCTV) acts as a corroborating piece of evidence, supporting the claim of unlawful entry and theft.

5. Witnesses

- Ruchika Vaidya (the petitioner) has witnessed the aftermath of the robbery, and her testimony can corroborate the claim.
- CCTV footage from the petitioner's residence.

6. Legal Provisions Invoked

The petitioner submits that Mr. Harsh Jain has committed the following offenses under the Bharatiya Nyaya Sanhita (BNS) (the new Penal Code 2023):

- Section 382 (Robbery in a Dwelling): Robbery of gold and valuables from the petitioner's home.
- Section 383 (Breaking and Entering to Commit Theft): Unlawfully entering the petitioner's house and breaking the cupboard lock.
- Section 424 (Mischief causing Damage to Property): Breaking the cupboard lock without permission and causing damage.

7. Relief Sought

In light of the above, the petitioner humbly requests the Hon'ble Court to take the following actions:

- Initiate an investigation into the matter as per the provisions of the Bharatiya Nyaya Sanhita (BNS).
- Direct the police to arrest the respondent, Mr. Harsh Jain, based on the evidence.
- Charge the respondent under the relevant sections of BNS (Section 382, Section 383, Section 424) for committing the offenses of robbery, house trespass, and mischief.

8. Previous Legal Action Taken

No FIR has been filed at the time of this petition. However, the petitioner requests the Hon'ble Court to intervene and direct the authorities to take appropriate action.

9. Prayer for Relief

Wherefore, the petitioner prays that the Hon'ble Court may be pleased to:

- Order an investigation into the incident.
- Direct the arrest and charge of Mr. Harsh Jain for the criminal offenses as mentioned above.
- Pass any other appropriate orders that may be deemed necessary and just in the interests of justice.

Date: 08/09/2025

Place: Nagpur, Maharashtra

[Signature of Petitioner]

Ms. Ruchika Jagdish Vaidya

Address: 0012, Chattrapati Square, Nagpur

Contact: 9356452464